Camden Development Control Plan 2019



camden council

Residential Subdivision Controls

3

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RESIDENTIAL SUBDIVISION CONTROLS

3.1 Introduction

Background

This part applies to land zoned R1 General Residential, R2 Low Density Residential, R3 Medium Density Residential and Zone R5 Large Lot Residential. This part focuses on the broad issues associated with the subdivision of land which need to be addressed including lot dimensions, street block and lot configuration, street network and public transport.

In addition to these subdivision controls, further controls are provided within the following Schedules of this DCP that apply to site specific localities. Refer to Figure 3-1 which shows the location of the schedules;

Schedule 1 – Elderslie

Schedule 2 – Spring Farm

Schedule 3 – Manooka Valley

Schedule 4 – Harrington Grove

Schedule 5 – Mater Dei

Schedule 6 – Camden Lakeside

Schedule 7 – El Caballo Blanco and Gledswood

Schedule 8 – Emerald Hills

If subdividing in R5 zone refer to the following schedules;

Schedule 9 – Catherine Field Village

Schedule 10 – Yamba

Schedule 11 – Grasmere

Schedule 12 – 121 Raby Road

Schedule 13 – 190 Raby Road

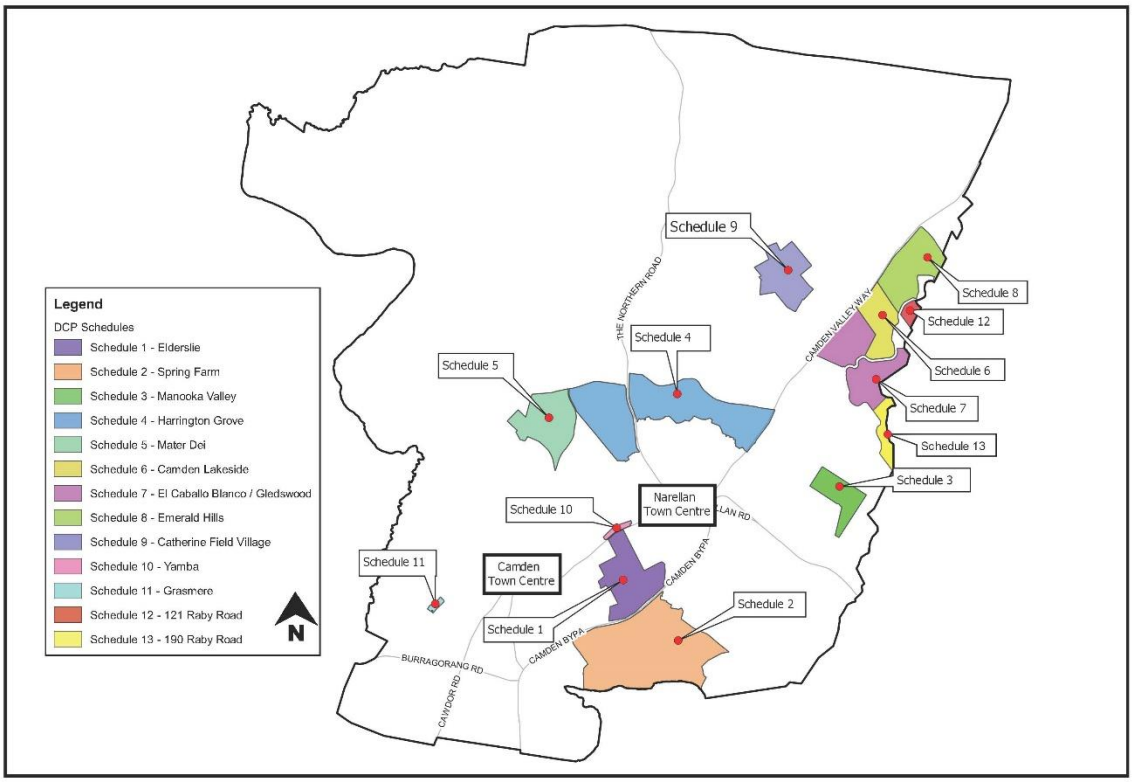


Figure 3-1: Map of Schedules

In the event of an inconsistency between a Schedule and the main body of this DCP, the Schedule prevails.

This Part must be read in conjunction with the requirements set out in Part 2 and Part 4 of this DCP, where relevant.

The flow chart below (Figure 3-2) explains how to work your way through Part 3 – Residential Subdivision, depending on the type of subdivision development application and the subdivision category.

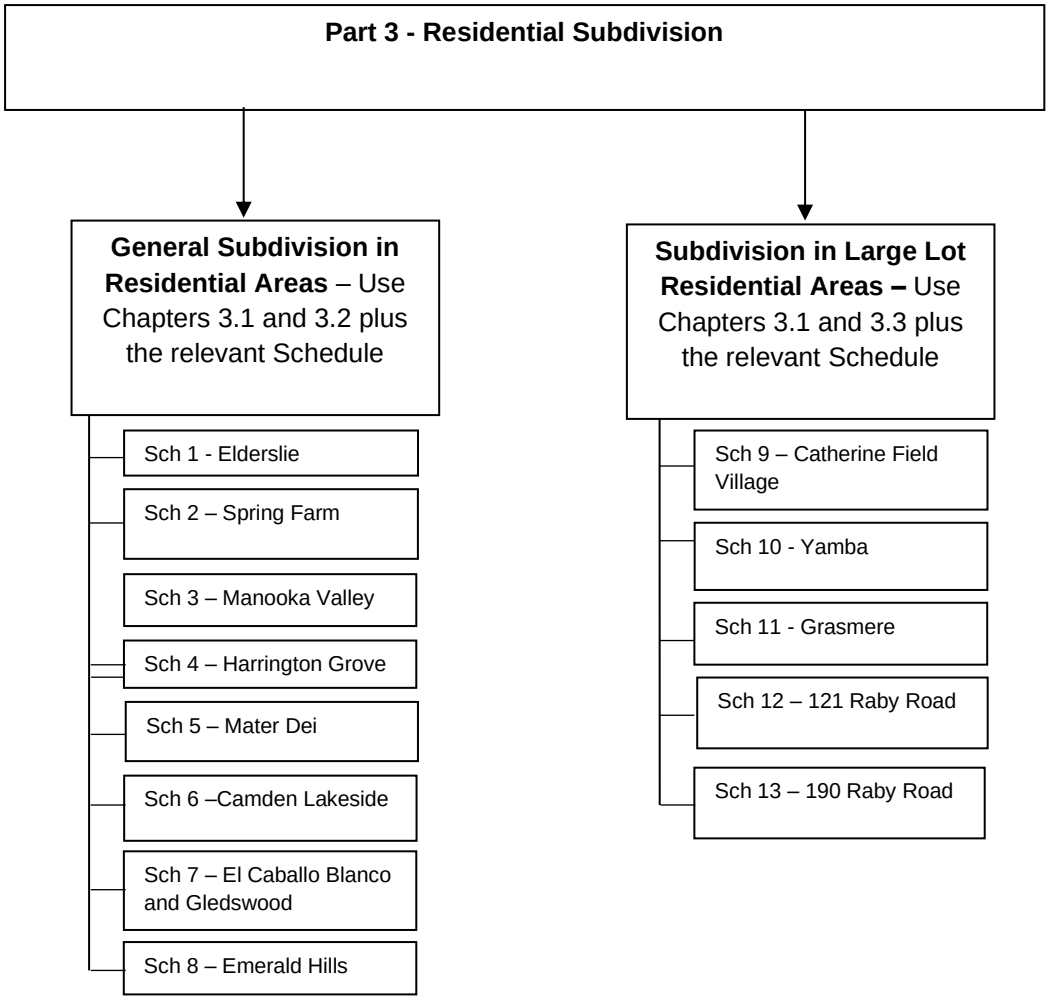


Figure 3-2: Residential Subdivision Flow Chart

Integrated Development (Small Lot) Application Subdivision Approval Process

Background

Integrated Development involves the subdivision and construction of dwellings on small lots (less than 300m^2).

An Integrated Development Application can be either categorised as Pathway 1 or Pathway 2 depending on the development type as shown in Table 3-1.

Objectives

a. To facilitate a diversity of housing sizes and products;

b. To ensure that subdivision & development on smaller lots is undertaken in a coordinated manner; and

c. To ensure that small residential lots achieve an appropriate level of amenity.

Controls

1. The subdivision of land must comply with CLEP 2010 which prescribes minimum lot size requirements for land in the Camden Local Government Area.

2. The subdivision approval process for small lot development is to be consistent with the requirements outlined in Table 3-1 below.

Table 3-1: Subdivision Approval Pathway for Integrated Development

	Pathway 1 DA for Subdivision with Detached Dwellings or Abutting Dwellings	**Pathway 2** DA for Subdivision with Attached Dwellings or Semi-Detached Dwellings
Application	Lots less than 300m^2	Lots less than 300m^2
Dwelling Design s88B restriction required	Yes, only the approved dwellings should be built as shown on the s88B instrument)	No (as the dwellings must be constructed with the subdivision as integrated housing)
Timing of subdivision (release of subdivision plan)	At any time with a s88B instrument, or No earlier than post a satisfactory frame inspection from a principal certifying authority (PCA)	No earlier than post a satisfactory frame inspection from a principal certifying authority (PCA)

3.2 General Subdivision Controls in Residential Areas

3.2.1 Introduction

This section provides general residential controls for subdivision within the Camden LGA.

Objectives

a. Manage subdivision throughout the Camden LGA to ensure sense of place is maintained by ensuring that development density and scale are in harmony with the existing or planned character of places;

b. Ensure minimal adverse impacts on environmental systems; and

c. Consider any building and/or land of heritage significance being present on, adjacent or in proximity to the site.

Controls

1. Subdivision design must take into consideration existing site attributes and be generally consistent and compatible with the existing/approved subdivision pattern of the surrounding area.

3.2.2 Lot Dimensions

Objectives

a. To establish minimum lot dimensions for different residential dwelling types;

b. To encourage a variety of lot sizes, type and design to promote housing choice and create attractive streetscapes with distinctive characters;

c. To ensure sense of place is maintained by ensuring that density and scale is in harmony with the existing or planned character of places; and

d. To ensure that subdivision reflects and reinforces the predominant subdivision pattern of the area.

Controls

1. Final residential lots must comply with the below table.

Table 3-2: Minimum Lot Dimensions

Minimum Lot size as stated in CLEP 2010	**Minimum Lot Width**	**Minimum Lot Depth**
450m^2 or greater	15m	25m
300m^2 and less than 450m^2	9m	25m

Note: Notwithstanding the minimum dimensions specified in Table 3-2, the minimum lot size in CLEP 2010 must be achieved.

2. Where permitted with consent under CLEP 2010, lots between 225m^2 and 300m^2 or less than 9m in width, may be considered, where the plan of subdivision includes a building envelope plan which demonstrates compliance with the requirements of this DCP. If approved, Council may require the building envelope plan to be included as part of a s88B Instrument attached to the lot (to only permit the approved dwelling to be constructed).

3. Where permitted with consent under CLEP 2010, lots less than 225m^2, may be considered, where a development application for both the subdivision of land and the construction of a dwelling on the lot is proposed. If approved, Council may require the building envelope plan to be included as part of a s88B Instrument attached to the lot (to only permit the approved dwelling to be constructed).

4. Lots should generally be rectangular in shape.

Note: Some Schedules contain additional lot dimension controls (including locational requirements) that should also be complied with.

Battle-axe Lots

Objectives

a. To limit the number of battle-axe lots;

b. To provide battle-axe lots that can accommodate residential development; and

c. To ensure that where a battle-axe lot is proposed the amenity of the lot and the amenity of neighbouring lots or public domain is not compromised.

Controls

1. A battle-axe lot should be considered only where:

    a. it has a minimum lot area of 600m^2 (excluding the access handle);

    b. a building envelope is provided which demonstrates compliance with the provisions for solar access, private open space, setbacks and site coverage of this DCP;

    c. a satisfactory building envelope is provided with adequate distance from existing or proposed dwellings, to ensure privacy.

2. The lot is designed so that the future dwelling house will be orientated to face the park, access denied road or resolve residual land issues (see Figure 3-3).

Where lots are addressing open space or access denied roads, fencing is to be provided on the shared boundary, to a maximum height of 1.5m and is to be open style incorporating pickets, slats, palings or the like or lattice style panels with a minimum aperture of 25mm. The only exception is if the boundary is a noise attenuation barrier which should be suitably designed (e.g. incorporating colour variation or textured panels) to maintain visual amenity.

3. Dual Occupancy development must not be located on a battle-axe lot.

4. Battle-axe access handles must:

- be at least 3.5 metres wide, if servicing one additional lot;
- be at least 5 metres wide if servicing two lots;
- not service more than 2 lots;
- have a maximum length of 50m and have reciprocal rights of way;
- have a 3m x 3m splay in accordance with Figure 3-3

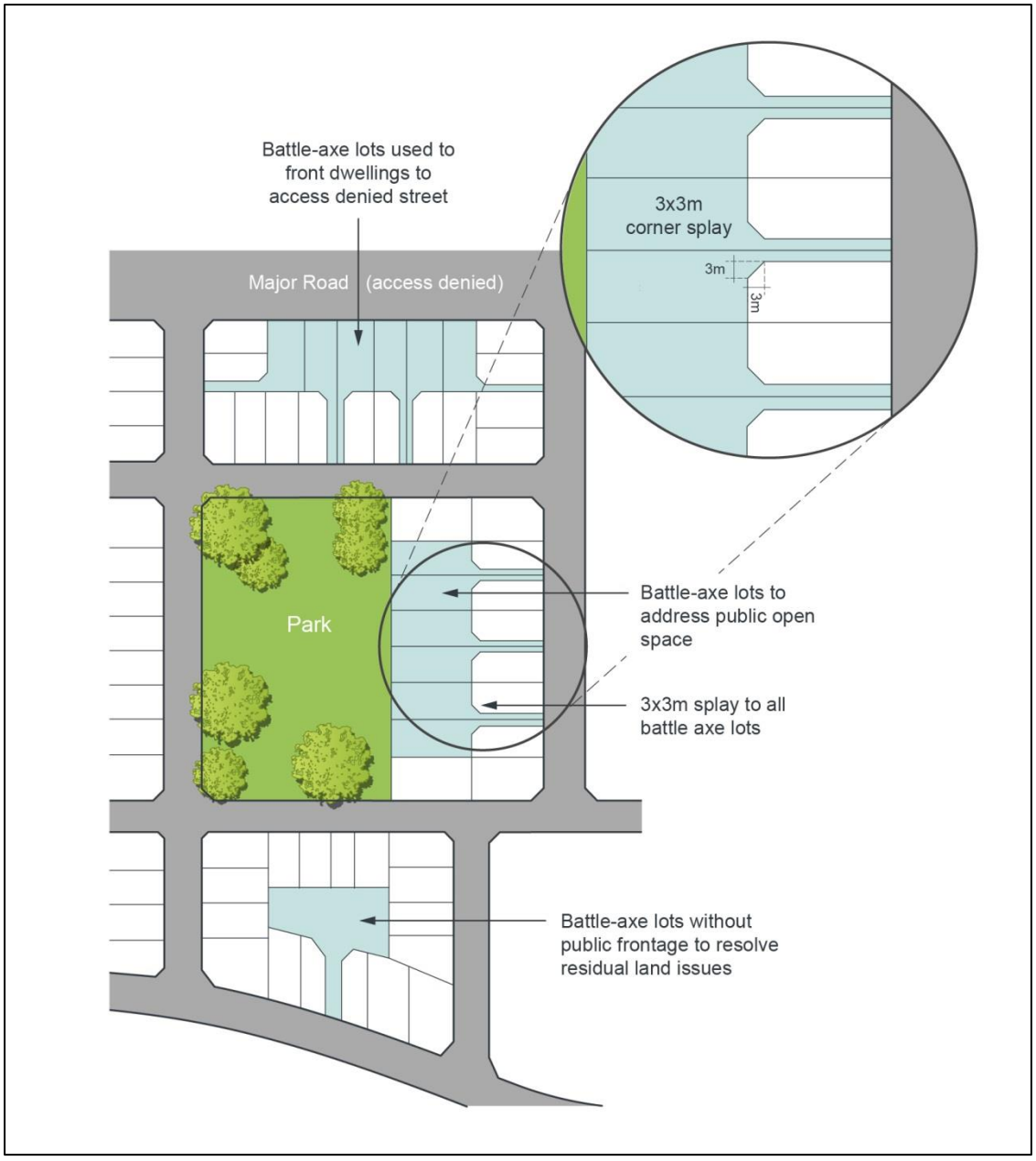


Figure 3-3: Examples of locations of battle-axe lots

Zero Lot Line Development

Objectives

To ensure that where zero lot boundaries are proposed the amenity of the lot and the amenity of neighbouring lots are not compromised.

Controls

1. Zero lot line development is only permitted on lots less than 400m^2.

2. An easement is required on the neighbouring lot where a zero lot line is nominated on an allotment on the subdivision plan, the adjoining (burdened) allotment is to include a 900mm easement for single storey zero lot walls and 1200mm easement for two storey zero lot walls to enable servicing, construction and maintenance of the adjoining dwelling.

3. The location of a zero lot line is to be determined primarily by topography and should be on the low side of the lot to minimise water penetration and termite issues. Other factors to consider include dwelling design, adjoining dwellings, landscape features, street trees, vehicle crossovers and the lot orientation.

4. The S88B instrument for the subject (benefited) lot and the adjoining (burdened) lot must include a note identifying the potential for a building to have a zero lot line. The S88B instrument supporting the easement is to be worded so that Council is removed from any dispute resolution process between adjoining allotments.

Note: Part 4 provides additional built controls for development on the zero lot.

3.2.3 Street Block and Lot Configuration

Objectives

a. To respect the natural attributes of the site; and

b. To optimise outlook, solar access and proximity to public and community facilities, parks and public transport with increased residential density in proximity to those areas.

Controls

1. Street blocks are to be a maximum of 250m long x 70m deep where the layout is grid formation. Longer block lengths and depths may be considered by Council where it can be demonstrated that pedestrian connectivity, stormwater management and traffic calming objectives are achieved.

2. Lot orientation and configuration is to be generally consistent with the subdivision principles shown at Figure 3-4. The preferred lot orientation is either on a north-south or east-west orientation. In locations which have views and vistas which may offer future residents a high level of visual amenity (e.g. views to bushland, open space, valleys or distant hills) an alternative lot orientation may be considered.

3. Residential lots must generally be rectangular and the use of battle-axe lots is to be minimised.

4. Where smaller lots are permitted they must be located close to neighbourhood centres, public transport or adjacent to high amenity areas such as parks.

5. Where possible, plans of subdivision are to identify the location of utility infrastructure and / or existing or proposed substations, kiosks, sewer man holes and/or vents affecting corner lots.

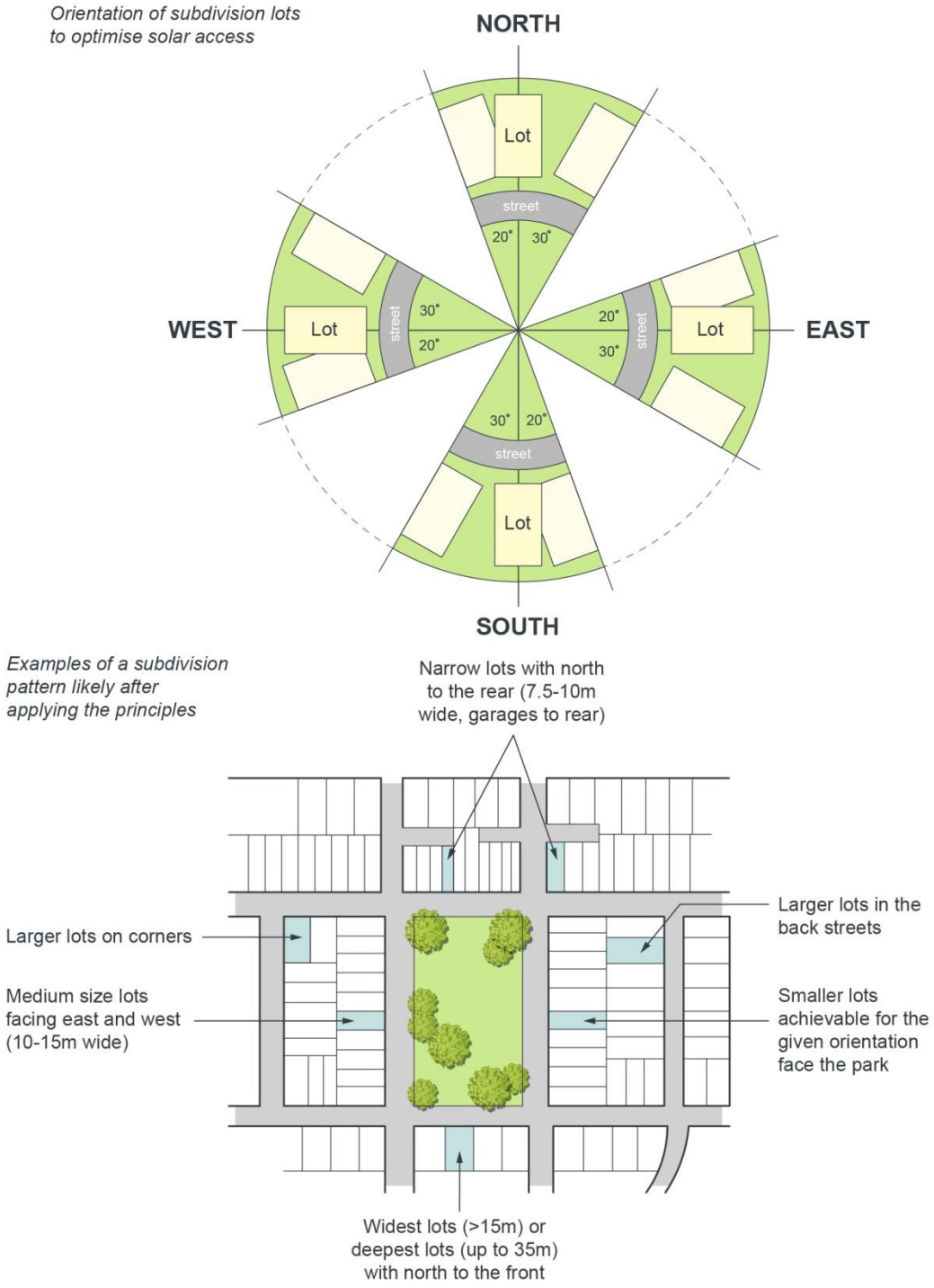


Figure 3-4: Subdivision, Lot Orientation and Lot Frontage Variation Principle

3.2.4 Street Network

Background

The residents of the Camden LGA rely heavily upon private motor vehicles as the primary means of transport. The design and layout of the street network is fundamental to promoting the safe and efficient movement of all types of vehicles, including private vehicles, trucks, buses, emergency vehicles and waste collection vehicles. The design of streets also contributes to the streetscape and local character of each neighbourhood by providing a range of street cross-sections, pedestrian and cycle path locations, and street trees.

Objectives

a. Provide a hierarchy of interconnected streets that provides safe, convenient and legible access within and beyond the Camden LGA;

b. Provide a safe and convenient public transport, pedestrian and cycleway network; and

c. Ensure a high quality, functional, safe, legible and visually attractive public domain.

Controls

1. Except where otherwise provided for in this DCP, all streets and roundabouts are to be designed and constructed in accordance with the minimum requirements set out in Council's *Engineering Design Specification* and *Engineering Construction Specification*. In particular:

    a. intersection treatments are required to clearly identify the road hierarchy and create well defined intersections.

    b. traffic islands and slow points are to be constructed of concrete or paving. Extended speed humps (i.e. plateaus) are not permitted for traffic calming.

    c. roundabouts are to be designed to accommodate heavy vehicles.

Note: For subdivisions on bush fire prone land, refer to Part 2.6 Bush Fire Risk Management of this DCP.

2. For local streets and access ways, traffic management, i.e. road layout and/or speed reducing devices, are to be used to produce a low speed traffic environment. Such traffic management devices are to be identified at the subdivision development application stage.

3. Where roads are adjacent to other road reserves, public reserves or riparian corridors, the verge widths may be reduced to a minimum of 1m. This is subject to footpaths, public utilities, bollards and fencing being adequately provided for and bush fire asset protection zones and riparian corridors requirements being addressed.

4. Laneways and private roads are to be designed and built in accordance with the Camden Council Engineering Design and Construction Specifications.

5. The street network must reduce the need for reversing of waste collection vehicles. This includes temporary turning heads as a result of staging and construction works (refer to *Council's Waste Management Guideline*)

6. Appropriate seating and regular water stations should be provided and indicated on the Landscape Plan.

7. A swept path analysis prepared by a suitably qualified professional must be provided in accordance with AS2890.2. The swept path analysis must demonstrate that a Heavy Rigid Vehicle can:

    a. manoeuvre throughout the subdivision, ensuring all turns and waste collections can be made legally and safely; and

    b. perform any turning movements in the vicinity of a turning bay or turning head as private roads, driveways or parking spots are not permitted to be used as turning areas.

8. Civil and/or landscape plans must be provided. The plans must:

    a. indicate a suitable waste collection area for each dwelling;

    b. ensure that each waste collection area is on level ground, running parallel to the rear of the kerb and measure 3.0metres x 0.9metres x 4.5metres high; and

    c. demonstrate that Council's waste vehicle can perform collections in a safe manner, allowing for lift arm movement/ rotation (refer to Council's Waste Management Guidelines for specification on lift arm).

9. Where properties are proposed to be accessed from cul-de-sacs, laneways, rear lanes or private driveways:

    a. each lot must identify a waste collection area that is suitable for the presentation of three bins to be collected;

    b. waste collection areas must not obstruct other major traffic or property use, including garage access;

    c. the road / lane must accommodate Council's waste vehicles;

    d. it must account for a side loading waste collection vehicle and the lift arm movement/rotation; and

    e. the use of cul-de-sacs must be minimised. If required, the maximum number of dwellings to be served by the head of a cul-de-sac is 6.

For further details, refer to Council's Waste Management Guideline.

3.2.5 Additional Controls for Street Network within Urban Release Areas

Objectives

a. Provide a hierarchy of interconnected streets that provides safe, convenient and legible access within and beyond the Camden LGA;

b. Ensure that the hierarchy of the streets is clearly discernible through variations in carriageway width, on-street parking, incorporation of water sensitive urban design measures, street tree planting, and pedestrian amenities;

c. Provide a safe and convenient public transport, pedestrian and cycleway network; and

d. Ensure a high quality, functional, safe, legible and visually attractive public domain.

Controls

1. The street network should be designed generally in accordance with the indicative master plan that applies to each urban release area. Where a variation to the indicative master plan is sought, or where a new urban release area is being designed, the street network must be designed to achieve the following principles:

   a. establish a permeable network that is based on a modified grid system but limits

   b. four-way intersections.

   c. encourage walking and cycling and reduce travel distances.

   d. maximise connectivity between residential areas and community facilities, open space and centres.

   e. take account of topography and accommodate significant vegetation.

   f. optimise solar access opportunities for dwellings.

   g. provide frontage to and maximise surveillance of open space and riparian corridors.

   h. provide views and vistas to landscape features and visual connections to centres and centres.

   i. maximise the use of water sensitive urban design measures.

   j. minimise the use of cul-de-sac. If required, the maximum number of dwellings to be served by the head of a cul-de-sac is 6 and the maximum number of overall dwellings to be served by the cul-de-sac is 12.

2. Streets are to be designed in accordance with the cross-sections and plans prepared for each urban release area. The dimensions shown on these typical diagrams are minimums only. Alternative street designs may be permitted on a case by case basis if they preserve the functional objectives and requirements of the design standards. When a new urban release area is being designed, the standard street cross-sections in Camden Council Engineering Design and Construction Specifications must be used as a guide.

3. Except where otherwise provided for in this DCP, all streets and roundabouts are to be designed and constructed in accordance with the minimum requirements set out in the Camden Council Engineering Design and Construction Specifications. In particular:

   a. intersection treatments are required to clearly identify the road hierarchy and create well defined intersections.

   b. traffic islands and slow points are to be constructed of concrete or paving. Extended speed humps (i.e. plateaus) are not permitted for traffic calming.

   c. roundabouts are to be designed to accommodate heavy vehicles.

3.2.6 Street Trees

Objectives

a. Ensure trees are planted to enhance the local environment.

Controls

1. Street trees are to be provided on all streets and must:

    a. be used consistently to distinguish between public and private spaces and between different classes of street within the street hierarchy;

    b. minimise risk to utilities and services and minimise ongoing water consumption;

    c. be durable and suited to the street environment and include endemic species;

    d. maintain adequate lines of sight for vehicles and pedestrians, especially around driveways and street corners;

    e. be suitably located away from waste collection areas to accommodate servicing;

    f. provide appropriate shade;

    g. provide an attractive and interesting landscape character without blocking the potential for street surveillance; and

    h. ensure street tree design and species selection complement and define the neighbourhood area, ecological linkages, street hierarchy, precinct entries, significant intersections, items of environmental heritage, heritage conservation areas and significant view lines.

2. Any proposal for street tree planting within the road reserve (i.e. carriageway and verge) is to include appropriate detailed design that addresses access and manoeuvrability of heavy vehicles, street sweepers and vehicles, the impact of the root system on the carriageway, ongoing maintenance of the tree and carriageway, and the relationship with future driveway access points. It must also address any adverse impact on available on-street parking, especially in higher density areas.

3. Trees for verge planting are to be in accordance with Camden Council Indicative Planting List and in accordance with Appendix B.

3.2.7 Parks and Open Space

Background

Open space performs an important community/civic function for the Camden LGA. It is imperative it is functionally integrated with the surrounding movement network in a visual and structural sense. It must be positioned and designed to provide access to and balance aesthetic, scenic and recreational demands from the diversity of surrounding land uses.

Objectives

a. Meet the public open space and recreational needs of residents;

b. Ensure high quality design and embellishment of all public open space; and

c. Create a variety of public parks within the suburb that fulfil functional requirements such as accommodating sporting activities while also being beautiful and memorable places that contribute to the legibility and character of the suburb.

Controls

1. Public parks (neighbourhood, local and regional open space), other open space areas (i.e. riparian corridors) and areas with landscape value are to be provided, generally in accordance with the master plan or Indicative Layout Plan provided within each new release area.

2. The embellishment of public parks are to be generally consistent with Council's approved Open Space Design Manual and any applicable voluntary planning agreement which applies to the land.

3.3 Subdivision in Large Lot Residential Areas

The purpose of the Large Lot Residential area (R5 zones) is to provide low density rural residential subdivisions free from commercial and industrial type uses. Objectives for this zoning can be found in the CLEP 2010.

Site specific controls for the subdivision of land within these areas are located within Schedules towards the end of this DCP. The Schedules specifically apply to:

- Catherine Field Village (Schedule 9)
- Yamba (Schedule 10)
- Grasmere (Schedule 11)
- 121 Raby Road (Schedule 12)

3.3.1 Lot Sizes and Dimensions

Objectives

a. To ensure sense of place is maintained by ensuring that density and scale is in harmony with the existing character;

b. To ensure that subdivision reflects and reinforces the predominant subdivision pattern of the area; and

c. To ensure that large residential lots are able to accommodate new dwellings that do not hinder the orderly development of the site.

Controls

Minimum Lot Sizes

1. The minimum lot size must comply with the minimum lot sizes as stated within the CLEP 2010**.**

2. The lot should be rectangular in shape and consistent with the existing subdivision pattern.

   Note: Lot sizes within the R5 zone varies depending on the location.

Minimum Lot Width

1. The minimum lot width in the R5 zone is 25m.

2. The lot must be able to accommodate a dwelling that is compliant with the residential controls within Part 4 this DCP.

-End of Part-

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